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STATE OF COLORADO

DIVISION OF MINERALS AND GEOLOGY

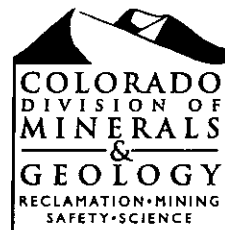
Department of Natural Resources

1313 Sherman St., Room 215

Denver, Colorado 80203

Phone: (303) 866-3567

FAX: (303) 832-8106



November 12, 2003

Mr. Terry Parrish
15715 Parrish Road
Berthoud, CO 80513

Bill Owens
Governor

Greg E. Walcher
Executive Director

Ronald W. Cattany
Division Director
Natural Resource Trustee

RE: CEMEX, Inc., Larimer Quarry; Permit No. M-1977-341
TR-01; Notice of Revision

Dear Mr. Parrish,

The Division received Technical Revision (TR-01) for the Larimer Quarry, Permit No. M-1977-341 operated by CEMEX, Inc. The revision was submitted as a result of the Division's inspection of December 6, 2002. The revision involves the retention of mine access roads and a substation on site.

A copy of the TR-01 is enclosed. The Division intends to make a decision on the application by December 1, 2003. If you have any questions, please contact me at (303) 866-4943.

Sincerely,

Erica S. Crosby
Environmental Protection Specialist

cc: Carl Mount; DMG (via electronic transmission)
John Lohr; CEMEX, Inc.
Maureen Jacoby; Banks & Gesso

Receipt 10404
\$188.00



Banks and Gesso, LLC

720 Kipling St., Suite 117
Lakewood, Colorado 80215

RECEIVED

July 31, 2003

AUG 04 2003 ✓

(303) 274-4277
Fax (303) 274-8329
www.banksandgesso.com

Ms. Erica S. Crosby
Environmental Protection Specialist
Colorado Division of Minerals and Geology
1313 Sherman Street, Room 215
Denver, Colorado 80203

Division of Minerals and Geology

TR-1 ✓

RE: **Cemex, Inc.; Larimer Quarry, 112 Permit No. M-1977-341**
Technical Revision ✓

Dear Erica:

On behalf of Cemex, Inc., we are submitting this Technical Revision (TR) for the Larimer Quarry, including the application fee of \$188.00. This TR is being submitted in response to your inspection report dated December 6, 2002.

Topsoil Replacement and Revegetation

Portions of B, C and D pits have been stabilized, repaired and revegetated as noted in your inspection report. Please see the attached before and after photographs (taken in June 2003) as evidence of these improvements. The photographs are from areas you identified in your inspection report.

Roads/Substation

Cemex requests that the "Existing Roads" and "Substation" shown on the enclosed 1972 "Topographic Map of the Larimer Pit, Larimer County, Colorado" be allowed to remain as part of the postmining land use. Attached is a letter from the landowner (Terry Parrish, dated June 25, 2003) requesting that the roads remain as a permanent feature.

Bond Release

If these changes are acceptable to the Division, please approve total bond release in conjunction with the TR.

Please let me know if you need additional information. Thank you.

Sincerely,

Maureen Jacoby

attachments: Application Fee of \$188.00
Site Photographs
1972 Topographic Map
Letter from Terry Parrish (7/25/03)

cc: John Lohr, Cemex, Inc.

Terry Parrish
15715 Parrish Road
Berthoud, CO 80513
(303) 665-3420

June 25, 2003

Barbara D. Chiappone
Colorado Division of Minerals and Geology
Department of Natural Resources
1313 Sherman St., Room 215
Denver, CO 80203
Phone: (303) 866-3567

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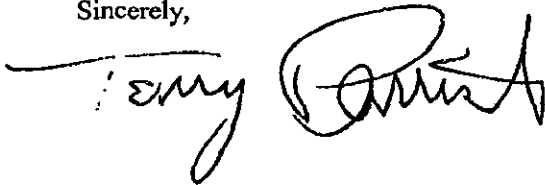
AUG 04 2003

Division of Minerals and Geology

Dear Madam:

This letter is in response to the bond release and proposed Access Amendment for Cemex Inc.'s Larimer County Quarry. The two existing roadways in question are necessary for access to existing property, and will be invaluable for access to future development. I request these roads be amended to the Bond Release for the property, and remain in service.

Sincerely,

A handwritten signature in cursive script, appearing to read "Terry Parrish".

Terry Parrish
Parrish Ranch Conservation Partnership